

Court No. - 32

Case :- WRIT - C No. - 17275 of 2022

Petitioner :- Mohammad Shafaq

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Balram Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Heard Sri Sarthak Singh, Advocate holding brief of Sri Balram Singh, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondent nos.2 and 3.

By means of this writ petition, the petitioner herein seeks a mandamus commanding the respondent nos.2 and 3 to provide electricity supply to the premises, namely, House No.116/56(4) Sayyad Nagar, Kanpur.

It is stated in the writ petition that the petitioner had duly applied for grant of electricity connection of 2 K.W. for domestic purposes and completed all necessary formalities. Thereafter an electricity meter was installed in the house occupied by the petitioner on 7.2.2022. However, the electricity supply has yet not been provided to the petitioner on account of the dispute raised by one Ashfaq Ansari, who is the neighbour of the petitioner. Repeated applications given by the petitioner went in vain and hence this writ petition.

Learned counsel for respondent nos.2 and 3, however, states that before the Permanent Lok Adalat a Case No.12 of 2021 (Mohd. Shafaq Vs. Managing Director, K.E.S.C.O.,Kanpur Nagar) was filed by the petitioner raising the dispute related to grant of electricity connection. The Permanent Lok Adalat passed an ex-parte order in favour of the petitioner herein on 25.11.2021, which was challenged by the objector, namely, Mohd. Ashfak Ansari, who is creating hindrance in the grant of electricity supply in the meter installed in the house of the petitioner.

The writ petition filed by Mohd. Ashfak Ansari being Writ-C No.10299 of 2022 was disposed of by the order dated 27.4.2022 whereby liberty was granted to the petitioner (objector in the present case) to recall the order dated 25.11.2022 passed by the Permanent Lok Adalat. The order passed by the Permanent Lok Adalat has been stayed for a period of four months or till the disposal of the recall application.

Beyond this fact, Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department is not aware about any proceeding having been undertaken by the Mohd. Ashfak Ansari before the Permanent Lok Adalat who had objected to the grant of electricity connection in the name of the petitioner.

On the other hand, it is submitted by the learned counsel for the petitioner that a settlement has been arrived and respondent no.2-the Managing Director, Kanpur Electricity Supply Company (KESCO), Civil Line, Kanpur Nagar to grant an electricity connection to the petitioner after the directions were issued by the Permanent Lok Adalat.

It is argued by learned counsel for the petitioner that in any case after completion of the necessary formalities, it was not proper for the respondent to deny the electricity supply on the dispute raised by a third party.

Considering the submissions made by the learned counsel for the parties and the facts which reflect from the record, it is evident that the petitioner had duly applied for grant of electricity connection and completed necessary formalities, whereafter an electricity meter had been installed in the house. The Electricity Department, in any case, could not have denied the electricity supply to the petitioner on the dispute raised by the third person with regard to the ownership of the premise in question. There is no such submission of Sri Mahboob Ahmad, learned counsel for the Electricity Department that the petitioner is not an occupant of the house in question or he had not completed necessary formalities for the grant of electricity connection. Insofar as the dispute raised by the third party with regard to the ownership of the house in question is concerned, the said issue can be redressed with the aid of Clause 4.4 of the U.P. Electricity Supply Code, 2005 which permits that the electricity connection can be granted to the occupant after getting an indemnity bond as per proforma in Annexure 4.2.

In our considered opinion, the Electricity Department has committed illegality in not asking the petitioner to fulfill the necessary formalities by furnishing an indemnity bond on the dispute relating to ownership of the house raised by the third party. In the said situation, we are not impressed by the arguments of Sri Mahboob Ahmad, learned counsel for the respondent nos.2 and 3 making objection with regard to the grant of mandamus.

The respondent is hereby directed to take necessary action for providing electricity supply in the meter installed in the house occupied by the petitioner being House No.116/56(4) Sayyad

Nagar, Kanpur.

Petitioner herein, on the other hand, is under an obligation to fulfill the condition of Clause 4.4 of the U.P. Electricity Supply Code, 2005 for grant of electricity connection in the house in question.

Any objection raised by the third party can accordingly, be dealt by the department.

With the observations and directions made above, the writ petition is allowed.

It is clarified that the order passed by this Court is with respect to grant of electricity connection in the premise in question in the name of petitioner and would not affect any other proceeding, if undertaken by the third party.

Order Date :- 20.6.2022

D. Tamang